

SC.3 Inspection Sequence

The approvals that come first, the inspections themselves, and the two things that happen after the last one.

Before you use this document

This is a process reference, not legal advice. South Carolina is a mandatory-enforcement state: § 6-9-10 orders every municipality and county to enforce the state code, and to enforce *only* that code, so the question that dominates most states in this series — will anyone inspect this house? — has a statutory answer here. What South Carolina replaces it with is a stack of small obligations with hard consequences: a disclosure you sign in person, a notice you file at the register of deeds afterwards, an energy code fixed by statute rather than by the code council, and a coastline the law forbids anyone to describe county by county. Fees, portals, review queues and the extra permits your particular lot triggers still vary. Confirm every item with the office that will actually handle your parcel before you rely on it.

THE APPROVALS THAT COME BEFORE THE PERMIT

South Carolina does not put these in one statute, so nobody hands you the list. Work down it before you file, because each of these is a separate office with its own queue and none of them will chase the others for you.

Approvals that sit upstream of your building permit

	What it is and where it lives	Who
Septic construction permit	Required before you build, if the parcel is not on public sewer. Administered by the Department of Environmental Services at des.sc.gov → Permits and Regulations → Septic Tanks. Several counties will not issue a building permit without a copy of it — Georgetown County says so on its own permit page.	SCDES
Well permit	Also SCDES, in a different bureau: des.sc.gov → Programs → Bureau of Water → Residential Wells. Septic and wells are set on the same sheet of paper by your site plan, but they are approved by different parts of the agency.	SCDES
Critical area or beachfront authorization	If the parcel is in or abutting a coastal critical area — tidelands, marsh, beaches, the beach and dune system — or seaward of a beachfront jurisdictional line, this is a separate state approval you must secure yourself . SCDES Bureau of Coastal Management . Assume your county will not warn you: no coastal county or city permit page checked for this kit names it as a precondition.	SCDES

Approvals that sit upstream of your building permit

	What it is and where it lives	Who
Zoning and setbacks	Usually the same building of government, always a different desk. Richland County, for one, requires a copy of the property plat and verification of setbacks and accessory structures through Zoning before permitting.	Local
Driveway or encroachment permit	Owed to whoever maintains the road you are connecting to, which on a rural lot is often not your county. Establish who that is before you cut the driveway, not after.	Varies
Land disturbance and stormwater	Triggered by acreage disturbed rather than by house size, and handled by the county or by the state depending on the jurisdiction. Horry County notes a stormwater notice of intent may run in parallel with the building permit.	Varies

DHEC does not exist any more, and its website is gone

The South Carolina Department of Health and Environmental Control was split. Environmental programs — septic, private wells, coastal — are now the **South Carolina Department of Environmental Services (SCDES)** at des.sc.gov. Public health went to the **Department of Public Health** at dph.sc.gov.

This matters because the old domain is dead, not redirected. As of September 2026 **scdhec.gov returns nothing** — no page, no forwarding. Anything you find that points you at a DHEC form, a DHEC office or a scdhec.gov address is stale, and a surprising amount of it is still live on county websites: Anderson, Oconee, York, Georgetown, Horry and Kershaw counties were all still linking septic guidance to the dead host when this kit was checked. Pickens and Berkeley had updated theirs.

The old coastal branding is retired too. What guides still call **OCRM** — the Office of Ocean and Coastal Resource Management — is now the Bureau of Coastal Management inside SCDES, and 2026 Act No. 146, signed 15 May 2026, rewrote the coastal chapter's definitions so that “Department” means the Department of Environmental Services and “Division” means its Division of Coastal Management.

Here is the trap that follows from that. The state's own published code page for Title 48 Chapter 39 was still printing the old DHEC and OCRM wording in September 2026 — the amendments had not been folded in. So the official-looking page will contradict this kit, and the kit is the current one. Cite the acts, not the code page, until it catches up. The coastal regulations at Chapter 30 *are* current; they were retitled for the Coastal Division.

IF YOU ARE BUILDING ON AN ATLANTIC-FRONTING BEACH

South Carolina's beachfront rules are **geometric, not flood-zone based**, and that surprises people who arrive expecting the FEMA map to be the whole story. Two lines run along the beach and everything turns on which side of them your house sits.

The two lines, and what each side of them costs

	The rule	Cite
The baseline	The crest of the primary oceanfront sand dune. The dune itself is defined by regulation as being at least 36 inches high and roughly continuous over 500 feet measured parallel to the shore.	§ 48-39-280(A); Regs. 30-1(D)(45)
The setback line	Forty times the average annual erosion rate, measured landward from the baseline, and never less than 20 feet landward of it. It is an erosion calculation, not a flood elevation.	§ 48-39-280(B); Regs. 30-1(D)(48)
Seaward of the baseline	No new construction or reconstruction, except a short statutory list. The only route is a special permit , which comes with a binding agreement to remove the structure.	§ 48-39-290(A), (D)
Partly seaward of the setback line	A new habitable structure here needs a written certification to the agency — not a permit , and there is no fee . The conditions are hard: 5,000 square feet of heated space maximum, sited “as far landward on the property as practicable,” drawings with footprint and cross-section, no erosion-control device built into the house, and no part on the primary dune or seaward of the baseline.	§ 48-39-290(B)(1)(a); Regs. 30-16(A)(1)
Anything else between the lines	Needs a department permit. A Major Beachfront Critical Area Permit carries a \$1,000 fee, against nothing for the certification above — so which side of that line your house falls on is worth establishing early.	§ 48-39-290(B)(4)
No hard armor	No new seawall, bulkhead or revetment seaward of the setback line. A grandfathered device destroyed more than 50 percent above grade after 30 June 2005 must be removed at the owner's expense , and none may be enlarged, strengthened or rebuilt.	§ 48-39-290(B)(2)(a)

*Also worth knowing before you buy: “destroyed beyond repair” is defined as more than **two thirds** of replacement value (§ 48-39-270(11)); destroying dune vegetation seaward of the setback line is prohibited (§ 48-39-310); and a seller must disclose the baseline and setback line to a buyer (§ 48-39-330). Enforcement runs \$100 to \$1,000 a day, and unpermitted activity counts as an “act of concealment,” which defeats the three-year limitations period (§ 48-39-170(C)). One phrase to retire: the “forty-year retreat policy” was **deleted** from the statute by 2018 Act No. 173. Guides still quote it.*

The lines moved in July 2026, and they are still moving

The beachfront jurisdictional lines are re-established every seven to ten years, staggered by area, with the old lines operative until the new ones are established (§ 48-39-280(C) and (D)). **Phase I lines took effect on 24 July 2026**, covering the Beaufort County beaches — Hilton Head, Fripp, Hunting, Harbor and Daufuskie among them. **Phase II**, covering the greater Charleston beaches — Folly, Sullivan's Island, Isle of Palms, Kiawah, Seabrook, Dewees and Morris, plus the Edisto set — is running through 2028, and no proposed lines had been published when this kit was checked.

So the line that governs your lot may be newer than any advice you have been given, or it may be about to change. You may appeal a line within one year for a fee of \$100 per property, by certified mail to the Division (§ 48-39-280(F), as amended by 2026 Act No. 146). And the state's own mapping viewer warns that it is approximate — **a property-specific survey must be performed** to establish where the lines fall on your parcel.

Flood: South Carolina sets no number, so your number is local

There is no statewide freeboard requirement. The word does not appear in the building code modifications or in the coastal regulations, and there is no floodplain chapter in the state code. The only flood modification South Carolina makes to the residential code is Reg. 8-1218, which amends R322.1 to send floodway construction to ASCE 24 and then says: “Where there is a conflict with this code and a locally adopted flood ordinance, **the more restrictive provision shall apply.**”

Which means your freeboard comes from your local floodplain administrator, and the spread is wide: Hilton Head Island requires **3 feet** above the base flood elevation, or 13 feet above mean sea level, whichever is higher. Ask for the number in writing and put it on SC.2. Note also that there is no state V-zone permit — South Carolina's jurisdiction is the setback line, not the FEMA zone, so clearing one tells you nothing about the other.

THE SEPTIC AND WELL NUMBERS THAT SHAPE YOUR SITE PLAN

Draw the well, the tank and the field before you draw the house. South Carolina sets the separations in one regulation and they are not negotiable at the counter — they decide whether a lot works at all. Every distance below is from R.61-56, Section 200.6, which requires the installation area to be sized so that no part of the system, excluding solid pipes, falls inside these figures.

Septic separations, R.61-56 § 200.6 and § 200.4-200.5

From	At least	From	At least
Private well	75 ft	Public well	100 ft
A building	5 ft	A property line	5 ft

Septic separations, R.61-56 § 200.6 and § 200.4-200.5

From	At least	From	At least
A driveway or parking area	Not under	An inground pool	15 ft
Delineated coastal critical area line, or mean high water of a stream, canal, pond or other body of water	75 ft	A drainage ditch, stormwater treatment system or detention pond, at maximum water elevation	25 ft
Piped drainage ditches	15 ft	Curtain drains	10 ft up, 25 ft down
Upslope of a basement	25 ft	Sides of a basement — 25 ft if foundation drains sit at or below trench-bottom elevation	15 ft
Top of slope of an embankment or cut of 2 ft or more, where any trench is above the invert	15 ft	Depth to the zone of saturation, below natural grade	36 in
Zone of saturation below the deepest point of effluent application	6 in	Depth to rock or other restrictive horizon below the deepest point of effluent application	12 in

The table above is the floor, not the answer. Section 200.6(2) says only that “Greater protective offsets shall be required when utilizing certain system standards contained within this regulation” — naming no standard and no number, because the greater offsets sit inside the individual system standards. Two of them matter enormously on a small lot. **If your soils force a mounded, mounded-fill or elevated system**, the 75-foot water-body figure above rises to **125 feet** from the critical area line, tidal waters, or the ordinary high water elevation of environmentally sensitive waters — **and that last term is not a coastal one**. The regulation defines environmentally sensitive waters to include outstanding resource waters, shellfish harvesting waters and trout-natural waters, “and including **lakes greater than forty (40) acres in size** and the Atlantic Ocean, regardless of their classifications.” A lakefront lot anywhere in South Carolina — Upstate or Midlands — on a fill-cap or mounded system is inside that 125-foot rule. Confirm your own water body rather than assuming; the acreage test is the thing to check. Separately, a **75-foot setback to every adjacent property line** can apply, measured not from the trench but from the point where the fill taper meets natural grade, or from the outer edge of the aggregate bed. That property-line figure is conditional: it attaches to contiguous lots in subdivisions approved after the standard took effect. The elevated infiltration system also carries an unconditional **50-foot** buffer to every property line, measured from the retaining wall. Ask which system standard your site evaluation calls for before you assume the five-foot property line figure is yours. Section 200.7 requires a usable repair or replacement area of at least **50 percent** of the size of the original system, free of impervious materials, buildings, setbacks and easements; the undisturbed ground between the trenches does not count towards it.

Five septic facts worth knowing before you buy the lot

	What the regulation says	Cite
Tank size	“No septic tank shall be installed which has a net liquid capacity of less than one thousand (1000) gallons . Such tanks shall be sufficient to serve dwellings of four (4) bedrooms or less. Two hundred fifty (250) gallons additional capacity shall be required for each bedroom over four.” Design flow is 120 gpd per bedroom .	R.61-56 § 201.1, § 501

Five septic facts worth knowing before you buy the lot

	What the regulation says	Cite
Permit life — two documents, two clocks	A “permit” here means both a permit to construct and an approval to operate , and both are required. The five-year figure is the shelf life of the <i>unbuilt</i> one: “Permits issued after the effective date of this regulation shall remain valid for a period of five (5) years from the date of issuance, provided the physical character of the property has not changed.” Once the system is installed and the approval to operate issues, “the construction and operation permit remains in effect for the life of the onsite wastewater system that it authorizes.” Your finished system does not expire in five years.	R.61-56 § 101.1, § 104.2(3)
What you do before the site visit	The applicant must clear and mark property boundary lines and corners, post an identification marker in the front center of the lot, stake the corners of the proposed building , mark the proposed stub-out, septic tank and drain field area, locate the proposed or existing well, and identify any other structures that may influence the layout — with a site sketch on or attached to the application. Underbrush clearing may be required.	R.61-56 § 104.1(6)
Backhoe pits	Required above the Fall Line separating the Piedmont from the Coastal Plain — so an Upstate or Midlands lot gets a dug pit, not just borings.	R.61-56 § 104.1(5)
Covering it early is a violation	“It shall be considered a violation of this regulation to cover a system that has not been subject to final Department inspection or installer self-inspection.” Installation documentation is due within two business days .	R.61-56 § 104.3

Wells are a separate regulation and a genuinely different answer. The separations run from the **well** outward: **20 feet** from sewer lines; **50 feet** from lakes, streams and surface-water bodies, and from animal feedlots, barns and stables; **75 feet** from a septic tank or tile field; **100 feet** from land application sites, waste treatment lagoons, chemical, herbicide, pesticide and petroleum storage or handling sites, and landfills; and **5 feet** from property lines and buildings.

R.61-71 (Well Standards), Section E.1.

South Carolina lets you drill your own well

This is unusual and it is stated twice. R.61-44 defines a well driller to “include owners constructing or abandoning wells on their own property **for their own personal use only**, except that such owners are not required to be licensed by the Department of Labor, Licensing, and Regulation for constructing wells and are not subject to the bonding requirements.” Section C.1 repeats it: the licensing requirement “does not apply to owners constructing or abandoning wells on their own property for their own personal use only.”

What you do not escape is the general permit. It is unlawful to construct a well “unless conditions of the general permit issued by the Department have been satisfied,” which means a **Notice of Intent** before you start. The Department reviews it fast, and the default is in your favor: approval, comments or denial within **48 hours** excluding weekends and state holidays, and “If notice is not given to the applicant by the end of the 48 hour period, coverage under the general permit... will be considered approved.” Another 48 hours' notice of the actual installation date is required, and it may run concurrently.

Then the construction standards bind you exactly as they bind a driller: grout the full annular space from a minimum depth of **20 feet**, grouted in place within **five days** of borehole completion; casing extending at least **one foot above land surface**; a sanitary seal on top of the casing; disinfection on completion to a chlorine residual of **50 to 250 ppm for at least four hours**; a durable identification plate; and Water Well Record Form 1903 submitted **within thirty days** after completion.

WHAT YOUR PERMIT IS EVIDENCE OF

Two statutes turn the permit card into something worth photographing the day you get it.

- **It fixes your code edition.** “Buildings must be inspected in accordance with the codes in effect for the locality on the date of the issuance of the original building permit” (§ 6-9-130(A)). If a new edition takes effect mid-build, your job stays where it started. The regulation says the same thing: work approved before the implementation date “must be inspected under the building codes in effect at the time the original building permit was issued” (R.8-236(B)).
- **It is required to carry a warning in bold type.** Section 15-3-640 provides that “A building permit for the construction of an improvement to real property must contain in bold type notice to the owner or possessor of the property of his rights under this section to contract for a guarantee of the structure being free from defective or unsafe conditions beyond eight years after substantial completion.” Look for it. It is telling you that South Carolina's outside limit on construction-defect claims is **eight years**, and that you may negotiate a longer guarantee by contract before substantial completion — which is the only moment you have any leverage to.

The eight-year clock, and why an owner-builder sits on both sides of it

Section 15-3-640 bars actions “based upon or arising out of the defective or unsafe condition of an improvement to real property... more than eight years after substantial completion.” It protects whoever built the thing. But § 15-3-670(A) withdraws that protection from “a person in actual possession or control, as owner, tenant, or otherwise, of the improvement” who knew or reasonably should have known of the defective condition. Build it and live in it and you are on both sides of that sentence.

One useful qualifier: § 15-3-670(B) says “the violation of a building code of a jurisdiction or political subdivision does not constitute per se fraud, gross negligence, or recklessness, but this type of violation may be admissible as evidence.” A failed inspection is not automatically ruinous. A record of having corrected it is worth keeping.

THE INSPECTION SEQUENCE

South Carolina enforces the adopted code's inspection provisions through your local building official, and the administrative chapter is one of the few parts of the code the state leaves to local adoption (R.8-236(E)). So **the exact call list and the notice you owe are your office's**. What follows is the order the work happens in, with the state-specific items marked. Confirm the list at the counter and cross out what does not apply.

Inspection log

	Item	Date	Result / inspector
☐	Temporary power — often the first thing you need and the easiest to forget to schedule		
☐	Footing — forms and steel in place, before concrete		
☐	Foundation, slab or pier — before pour or backfill. Exterior piers need one #4 dowel mid-depth (R.8-1220)		
☐	Under-slab vapor retarder — 10-mil ASTM E1745 Class A, joints lapped 6 inches (R.8-1225)		
☐	Termite pretreatment record — establish who produces it and who wants to see it		
☐	Underground and under-slab plumbing		
☐	Framing and sheathing		

Inspection log

	Item	Date	Result / inspector
☐	Truss design drawings handed over — the state code requires them “at the time of inspection” and with the truss shipment (R.8-1224, R.8-1227)		
☐	Electrical rough-in		
☐	Plumbing rough-in		
☐	Mechanical rough-in		
☐	Insulation — check the six-inch termite inspection strip at the sill is left open (R.8-1217)		
☐	Energy compliance — to the 2009 IECC, in whatever form your office accepts		
☐	Crawl space , if unvented — vapor retarder plus one of the four conditioning options (R.8-1221)		
☐	Final electrical		
☐	Final plumbing — the shower liner test is performed here, 15 minutes, no leakage (R.8-1239)		
☐	Final mechanical		
☐	Final building		
☐	Certificate of occupancy issued		

WHAT A VIOLATION ACTUALLY COSTS

South Carolina writes this in the Building Codes Act rather than leaving it to local ordinance, and the structure is two-step with a cure period in the middle.

The penalty structure, and the cure period inside it

	What the statute says	Cite
First violation	“A person found to be in violation of a building code or regulation adopted pursuant to the provisions of this chapter must be cited and fined, by civil fine, in an amount not more than two hundred dollars. ”	§ 6-9-80(B)

The penalty structure, and the cure period inside it

	What the statute says	Cite
Seven days to cure	"Before being charged with a second violation, the person must be given seven calendar days to remedy the violation or submit a plan for correcting the violation." A plan counts. Submit one in writing and keep the copy.	§ 6-9-80(B)
Then it compounds	Failure to correct or submit a plan within those seven days means a civil fine "not to exceed two thousand dollars. Each day a violation continues is a separate offense. "	§ 6-9-80(C)
Your neighbor has standing	Injunctive relief or mandamus may be sought not only by the building official and the county or municipal attorney but by "an adjacent or neighboring property owner who would be damaged by the violation."	§ 6-9-80(A)
Energy is separate	Under the Energy Standard Act the official "shall notify the permit holder in writing to bring the building into compliance... or to secure it from entry or both; if the permit holder fails to comply... the building official shall revoke the permit. "	§ 6-10-50(E)

AFTER THE FINAL: TWO CLOSING ACTS, NOT ONE

Most owner-builders treat the certificate of occupancy as the end. In South Carolina it is the end of one thing and the start of three others.

- **The certificate of occupancy is legally required before you move in.** "A building constructed after the effective date of the Energy Standard must not be used or occupied until a certificate of occupancy has been issued" (§ 6-10-50(F)).
- **It is also statutory proof of substantial completion.** "For any improvement to real property, a certificate of occupancy issued by a county or municipality, in the case of new construction... shall constitute proof of substantial completion of the improvement under the provisions of Section 15-3-630, unless the contractor and owner, by written agreement, establish a different date of substantial completion" (§ 15-3-640). That date starts the eight-year repose clock.
- **And it is one of the two candidate start dates for the two-year sale clock.** Section 40-59-260(B) runs its window from "two years after completion or issuance of a certificate of occupancy." One certificate, two clocks, both running.

The filing that is easiest to skip and worst to skip

Section 40-59-260(E): the owner “must promptly file as a matter of public record a notice with the **register of deeds**, indexed under the owner's name in the grantor's index, stating that the residential building or structure was constructed by the owner as an unlicensed builder. **Failure to do so revokes the statutory exemption.**”

There is no deadline in days and no reminder. Counties handle the timing differently — several fold the recording into permit issuance so that it happens at the front of the job rather than the back. Greenville County requires the disclosure statement to be notarized *and* recorded before it is submitted; Sumter requires recording before the permit issues; Richland requires notarization and filing with the Register of Deeds. Find out which way yours runs, and if it runs the statutory way — after the house exists — put a reminder somewhere you will see it the week you get your certificate.

Closing out

	Item	Date	Notes
☐	Certificate of occupancy issued and filed with your records Date _____		
☐	Register-of-deeds notice under § 40-59-260(E) recorded, and the recording reference written down Book / page _____ Date _____		
☐	Permit card, every inspection result and the approved plans stored together — this is your evidence for the next eight years		
☐	Termite treatment record and any warranty in the same file		
☐	Septic final approval or sewer connection approval on file Date _____		
☐	Well completion paperwork and water test results on file, if you drilled Date _____		
☐	Two-year sale window diarized from both candidate dates — completion and certificate of occupancy Earliest _____ Latest _____		

SOURCES

Sources — every South Carolina claim in this document (verified September 2026)

What this document states	Authority
Septic and private wells are administered by the Department of Environmental Services, not by DHEC	SCDES, des.sc.gov
Coastal critical area and beachfront authorizations	SCDES Bureau of Coastal Management
The permit issuance date fixes the code edition your house is inspected against	S.C. Code Ann. § 6-9-130(A); Reg. 8-236(B)
The building permit must carry a bold-type notice of the right to contract for a longer guarantee; eight-year repose; the certificate of occupancy is proof of substantial completion	S.C. Code Ann. § 15-3-640
The repose limit is unavailable to an owner in possession who knew of the defect; a code violation is evidence but not per se recklessness	S.C. Code Ann. § 15-3-670
Civil fines, the seven-calendar-day cure, daily accrual, and a neighbor's standing to seek an injunction	S.C. Code Ann. § 6-9-80
Energy enforcement and permit revocation; no occupancy without a certificate	S.C. Code Ann. § 6-10-50(E), (F)
The register-of-deeds notice, and what failing to file it does	S.C. Code Ann. § 40-59-260(B), (E)
Truss drawings at inspection; shower liner test at final plumbing; termite inspection strip; slab and crawl space vapor retarders	S.C. Code of Regs. 8-1224, 8-1227, 8-1239, 8-1217, 8-1225, 8-1221
Administrative provisions of the code are left to local adoption, so the call list is your office's	S.C. Code of Regs. 8-236(E)
Septic separations, tank sizing, permit life, site preparation, backhoe pits above the Fall Line, repair area, and the bar on covering an uninspected system	S.C. Code of Regs. 61-56 §§ 104, 200, 201, 501
Well separations, grouting, casing above grade, sanitary seal, disinfection, identification plate, Form 1903 in thirty days	S.C. Code of Regs. 61-71
Owners may construct a well on their own property for personal use without an LLR license; the Notice of Intent and its 48-hour review	S.C. Code of Regs. 61-44 §§ B, C, D
The beachfront baseline and setback line, the certification route and its 5,000 sq ft cap, the hard-armor ban, dune vegetation, seller disclosure, enforcement and the lines review cycle	S.C. Code Ann. § 48-39-170, § 48-39-270, § 48-39-280, § 48-39-290, § 48-39-310, § 48-39-330; Regs. 30-1, 30-16

Sources — every South Carolina claim in this document (verified September 2026)

What this document states	Authority
The coastal agency's current name and authority	2023 Act No. 60; 2026 Act No. 146
No statewide freeboard; the more restrictive of code and local flood ordinance applies	S.C. Code of Regs. 8-1218

Everything cited here is free to read, in three places. Statutes (**S.C. Code Ann. § 40-59-260**) are at **scstatehouse.gov** → Code of Laws, and the whole chapter loads at one address you can type directly — scstatehouse.gov/code/t40c059.php, where **t40** is the Title and **c059** the chapter, zero-padded to three digits. Titles used here: **6** local government (building codes, the Energy Standard Act), **15** the eight-year repose, **29** mechanics' liens, **40** licensing, **44** health, **48** the coast. Regulations are at **scstatehouse.gov/coderegs/**, by chapter number. **One warning when you look something up:** a search engine will still hand you pages naming **DHEC**, an agency that ceased to exist in 2024 — check the masthead of any septic, well or coastal page you land on before you trust it. Read September 2026.